

1 ENGROSSED HOUSE
2 BILL NO. 3711

By: Caldwell (Chad) and Lepak
of the House

3 and

4 Pugh of the Senate
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8 An Act relating to schools; amending 70 O.S. 2021,
9 Section 5-135.4, which relates to the School District
10 Transparency Act; requiring school district to post
11 percentage of instructional expenditures on the home
12 page of its website; defining term; providing
13 exclusions; amending Section 1, Chapter 157, O.S.L.
14 2023 (70 O.S. Supp. 2025, Section 15-110), which
15 relates to bond elections; requiring school districts
16 to include percentage of instructional expenditures
17 with any bond proposal; defining term; providing
18 exclusions; clarifying applicability; amending 70
19 O.S. 2021, Section 15-204, which relates to bond
20 guarantee applications; requiring school districts to
21 include percentage of instructional expenditures with
22 any bond guarantee application; defining term;
23 providing exclusions; providing an effective date;
24 and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 5-135.4, is
amended to read as follows:

Section 5-135.4. A. This section shall be known and may be
cited as the "School District Transparency Act".

1 B. The State Department of Education shall make school district
2 and school site expenditure data available on its website. Data
3 shall be made available in an open-structured data format that may
4 be downloaded by the public and that allows the user to
5 systematically sort, search, and access all data without any fee or
6 charge for access. Prior to the beginning of the 2019-2020 school
7 year, if a school district has a website, the district shall provide
8 a link on its home page to the State Department of Education's
9 Oklahoma Cost Accounting System and School District Financial
10 Information website, or the district shall provide the information
11 required by subsection C of this section within one click of the
12 home page of the school district's website.

13 C. The website shall provide information on school district and
14 school site expenditures of state, federal, and local funds, whether
15 appropriated or nonappropriated, excluding payments of voluntary
16 payroll deductions for employees to receiving parties. The website
17 shall further provide information, including, but not limited to,
18 the following:

- 19 1. Identification of the school district;
- 20 2. The Oklahoma Cost Accounting System (OCAS) code designation
21 for each expenditure;
- 22 3. The name and principal location of the entity or recipient
23 of the funds, excluding release of information relating to an
24 individual's place of residence and release of information

1 prohibited by subsection D of Section 24A.7 of Title 51 of the
2 Oklahoma Statutes or by federal law relating to privacy rights;

3 4. The amount of funds expended;

4 5. The type of transaction;

5 6. A descriptive purpose of the funding action or expenditure;

6 7. The budgeted and audited actual expenditure figures for each
7 fiscal year, ensuring each set of figures can be identified as
8 budgeted or audited figures;

9 8. The per-pupil expenditure as defined in Section 1-124 of
10 this title; and

11 9. The total compensation package of the superintendent as
12 defined by the requirements of the OCAS including a listing of the
13 base salary, insurance, retirement and other fringe benefits
14 including exempted nonadministrative services such as teaching in
15 the classroom or serving as a principal, counselor or library media
16 specialist pursuant to subsection E of Section 18-124 of this title.

17 D. The Department shall make the data available on its website
18 within one hundred twenty (120) days of transmission of the
19 expenditures to the Department by the school district.

20 E. School districts shall provide information requested by the
21 Department to accomplish the purposes of this section.

22 F. If a school district maintains a website, the district shall
23 provide the information required in subsection C of this section in
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1 the manner prescribed in subsection B of this section on the
2 district website.

3 G. In addition to the requirements of this section, if a school
4 district maintains a website, the district shall provide the
5 percentage of total district expenditures that were allocated to
6 instructional expenses in the last fiscal year on the home page of
7 its website. "Instructional expenditures" means instruction
8 expenditures as defined by the National Center for Education
9 Statistics, a federal entity within the United States Department of
10 Education. If the National Center for Education Statistics ceases
11 to exist, then instructional expenditures shall have the same
12 meaning as provided by an equivalent entity to the National Center
13 for Education Statistics. Instructional expenditures shall not
14 include administrative services as defined in Section 18-124 of this
15 title or for equipment or materials for administrative staff.

16 H. Nothing in this section shall require the disclosure of
17 information which is required to be kept confidential by state or
18 federal law.

19 ~~H.~~ I. The disclosure of information required by this section
20 shall create no liability whatsoever, civil or criminal, to the
21 State of Oklahoma, the State Department of Education, school
22 districts, or any employee thereof for disclosure of required
23 information or for any error or omission in the disclosure.

1 ~~¶~~ J. The Department shall undertake activities annually to
2 inform parents, schools and other stakeholders about the
3 availability of school district and school site expenditure data on
4 its website and how to use the website.

5 SECTION 2. AMENDATORY Section 1, Chapter 157, O.S.L.
6 2023 (70 O.S. Supp. 2025, Section 15-110), is amended to read as
7 follows:

8 Section 15-110. A. When a school district board of education
9 calls an election for the purpose of issuing bonds pursuant to
10 Section 15-102 of ~~Title 70 of the Oklahoma Statutes~~ this title, the
11 school district shall, at least thirty (30) days prior to the
12 election, post on its website a copy of the bond proposal, including
13 each project to be funded by the bond proceeds, a description of
14 each project, ~~and~~ the estimated cost for each project, and the
15 percentage of total district expenditures that were allocated to
16 instructional expenses in the last fiscal year. "Instructional
17 expenditures" means instruction expenditures as defined by the
18 National Center for Education Statistics, a federal entity within
19 the United States Department of Education. If the National Center
20 for Education Statistics ceases to exist, then instructional
21 expenditures shall have the same meaning as provided by an
22 equivalent entity to the National Center for Education Statistics.
23 Instructional expenditures shall not include administrative services
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1 as defined in Section 18-124 of this title or for equipment or
2 materials for administrative staff.

3 B. If electors approve the issuing of bonds at an election, the
4 school district shall continue to post on its website the bond
5 information required by subsection A of this section for the
6 duration of the bond and one (1) year after completion of all bond
7 projects. The information posted on the school district website
8 shall also include updates when there is a material change in the
9 scope of the projects and their purpose as stated at the time the
10 board of education calls the bond election. The updated information
11 shall be posted online within thirty (30) days following approval of
12 the project changes by the board of education.

13 C. ~~This act~~ The provisions of this section, excluding the
14 instructional expenses requirement, shall not apply to any bond
15 projects approved by electors prior to ~~the effective date of this~~
16 ~~act~~ November 1, 2023. The instructional expenses requirement
17 provided in this section shall not apply to any bond projects
18 approved by electors prior to the effective date of this act.

19 SECTION 3. AMENDATORY 70 O.S. 2021, Section 15-204, is
20 amended to read as follows:

21 Section 15-204. A school district seeking the guarantee of
22 eligible bonds shall apply to the Commissioners on an application
23 which ~~must~~ shall include:
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1 1. The name of the school district and the principal amount of
2 the bonds to be issued;

3 2. The maturity schedule, estimated interest rate and date of
4 the bonds; ~~and~~

5 3. The percentage of total district expenditures that were
6 allocated to instructional expenses in the last fiscal year.

7 "Instructional expenditures" means instruction expenditures as
8 defined by the National Center for Education Statistics, a federal
9 entity within the United States Department of Education. If the
10 National Center for Education Statistics ceases to exist, then
11 instructional expenditures shall have the same meaning as provided
12 by an equivalent entity to the National Center for Education
13 Statistics. Instructional expenditures shall not include
14 administrative services as defined in Section 18-124 of this title
15 or for equipment or materials for administrative staff; and

16 4. Any other information as deemed necessary and appropriate by
17 the Commissioners of the Land Office.

18 The application must be accompanied by a fee set by the
19 Commissioners in an amount to cover costs of administering the
20 guarantee program. The Commissioners and the State Bond Advisor
21 shall enter into an interagency agreement in order to administer
22 their responsibilities pursuant to the provisions of this act.

23 From the fees collected, the Commissioners shall enter into a
24 cooperative agreement with the State Bond Advisor to defray any

1 administrative costs of his or her office in carrying out the
2 provisions of this act.

3 SECTION 4. This act shall become effective July 1, 2026.

4 SECTION 5. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

8 Passed the House of Representatives the 24th day of March, 2026.

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Presiding Officer of the House
of Representatives

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13 Passed the Senate the ____ day of _____, 2026.

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Presiding Officer of the Senate

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